PHILLIP CHAPFUNGA
versus
CHIDO JUBILEE DARELL MAKAZHU

HIGH COURT OF ZIMBABWE
**WAMAMBO J**
HARARE; 7 November 2025

**Urgent Chamber Application**

*M S Katsande,* for the applicant
Respondent in person

WAMAMBO J: This is an urgent chamber application for a *mandament van spolie* (spoliation order). The Applicant, Phillip Chapfunga, seeks an order to be immediately restored to possession of the property from which he was evicted by the Respondent, Chido Jubilee Darell Makazhu, claiming his eviction was unlawful and malicious.

The Applicant submitted that he was in peaceful and undisturbed possession of Subdivision 2 of Ealing Farm in Beatrice. On 29 July 2025, the Respondent ejected the Applicant in the company of the Sheriff of Zimbabwe and police officers from Beatrice Police. The basis of the ejectment was because the Respondent had obtained an order of this Honourable Court under matter number HCH 3893/24 ordering his eviction and others from Subdivision 1 of Ealing Farm, Beatrice also known as Mnandi Farm. The Applicant said he is not in occupation of Subdivision 1 that the court order under matter number HCH 3893/24 relates to and his eviction by the Respondent is malicious. Applicant prays for a mandamant van spolie (spoliation order) to be granted in his favour because he says his unlawful eviction will cause great prejudice and unsalvageable economic harm considering the investment that he says he has put into Subdivision 2 of Ealing Farm, Beatrice. Resultantly, Applicant approached this Honourable Court for redress.

The respondent submitted that she is a co-executor of Estate Late Amos Bernard Muvengwa Midzi DR 1467/15. The Late Amos Bernard Muvengwa Midzi is her biological father and she is a beneficiary to Estate Late Amos Midzi.

She further submitted that she and others legally tenured to occupy subdivision 1 were in peaceful possession until one, Partson Chipunza invaded and illegally began parcelling out and subdividing their farm for personal financial gain. Partson Chipunza she said, is a former casual general farm hand of the late Ambassador Amos Midzi, who worked for only 3 months on the farm.

The Respondent submitted that she knew the Applicant, Philip Chapfunga, as one of the illegal occupants of Subdivision 1 of Ealing Farm. She alleged that the Applicant had unlawfully acquired 63 hectares of land from Partson Chipunza, a former casual farm worker, and was occupying the property without legal entitlement. The Respondent further stated that the Applicant was served with a notice of eviction on 20 May 2025, and she tendered the return of service as evidence. She argued that this return of service demonstrates a lack of urgency in the Applicant's present application.

According to the Respondent, the Applicant was lawfully evicted on 29 July 2025 by the Sheriff, and she submitted the Sheriff's return of service to substantiate this claim. However, she alleged that on the same day, following the eviction, the Applicant unlawfully re-entered the fenced premises of Subdivision 1, from which he had been removed. As a result of this conduct, the Respondent indicated that there is an impending warrant of arrest against the Applicant under RRB No. 6371414 for contempt of court and unlawful entry.

The respondent submitted that the court application is fatally defective for non-joinder of necessary parties, namely The Ministry of Lands, Agriculture, Fisheries, Water, and Rural Development, The Sheriff of Zimbabwe, The Master of High Court and the owners Of Subdivision 2 of Ealing Farm i.e. Hope Katuka who have a direct interest in the subject matter of this case

However, according to Rule 32(11) of the High Court Rules 2021: [ *Chapter 7:06*]

> "No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party, and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter."

That being the law, the court finds that the point in limine has no merit.

The respondent raised the lack of urgency as a second point in limine. She submitted that the Applicant was served with a notice of eviction on 20 May 2025. The applicant was subsequently evicted on 29 July 2025, 2 months and 9 days after the notice of eviction.

The applicant did not dispute either having been served with a notice of eviction on 20 May 2025 or having been evicted on 29 July 2025. The respondent attached the return of service for both the notice of eviction as well as for the eviction, serving to confirm only what was already common cause before the court.

It is trite law that one of the requirements for an urgent application to be entertained by the court is that the matter must be genuinely urgent. In Kuvarega v Registrar General 1998 (1) ZLR 188 (H), CHATIKOBO J stated at page 198 F that :

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been delay…"

The need to act arose once the applicant received the notice of eviction however the applicant tarried until he was finally evicted by the Sheriff's office. The applicant did no offer any explanation to warrant a delay, let alone a reasonable one

After receiving the notice of eviction, the applicant should have immediately filed for stay of execution. However, the applicant failed to do so, waited until eviction was effected. 2 months and 18 days elapsed from the day the applicant was served with the notice of eviction until he filed this application.

The court is convinced that urgency is self-created. Consequently, the court hereby makes the following order:

1. The matter be and is hereby struck off the roll of urgent matters.
2. The applicant shall pay costs at the ordinary scale."

**WAMAMBO J…….**

*Tanyanyiwa & Associates Attorneys-At-Law*, the applicant's legal practitioners
*Kossam Ncube & Partners*, the respondent's legal practitioners